

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Thomas Skinnider	Team: Squad #03	CCRB Case #: 202311575	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 12/08/2023 10:50 AM	Location of Incident: 400 Grand Street (Target)	18 Mo. SOL 6/8/2025	Precinct: 07		
Date/Time CV Reported Mon, 12/11/2023 9:18 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 12/11/2023 9:18 AM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. SGT Joel Manou	02399	940415	063 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A . SGT Joel Manou	Abuse: Sergeant Joel Manou stopped § 87(2)(b)			A . Substantiated	
B . SGT Joel Manou	Abuse: Sergeant Joel Manou failed to provide § 87(2)(b) with a business card.			B . Substantiated	

Case Summary

On December 11, 2023, § 87(2)(b) filed this complaint with the CCRB via the online website.

On December 8, 2023, at approximately 10:50 a.m., at the Target on 400 Grand Street, in Manhattan, § 87(2)(b) who had recently undergone surgery, and § 87(2)(b) went to the CVS Pharmacy located inside the store to pick up prescriptions for his arm, which was inside of a sling in his jacket, concealed. After picking up the prescriptions, he began exiting the store when SGT Joel Manou, of the 63rd Precinct, approached him and asked him to show the inside of his jacket (**Allegation A: Abuse of Authority, Substantiated**). SGT Manou then reached towards his zipper but did not search him. Upon completion of the stop, he did not provide a business card to § 87(2)(b) (**Allegation B: Abuse of Authority, Substantiated**). No arrest or summons resulted from this incident.

The investigation received surveillance footage of the stop from Target Legal [BR 1]. The investigation received negative results from NYPD Legal for body-worn camera (BWC) footage of this incident [BR 2]. Sgt. Manou was not equipped with a BWC during the incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Joel Manou stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Sergeant Joel Manou failed to provide § 87(2)(b) with a business card.

On December 8, 2023, at approximately 10:50 a.m., § 87(2)(b) and § 87(2)(b) his friend, went to the Target on 400 Grand Street to retrieve a prescription for medicine at the CVS Pharmacy inside. § 87(2)(b) was wearing a zipped jacket that concealed his arm, which was located inside of his jacket in a sling, leaving his right jacket sleeve empty. They brought their § 87(2)(b) bags inside, which § 87(2)(b) received following surgery on his arm. They traveled up the steps and retrieved the prescription from CVS, and as they approached the exit of the store, SGT Manou approached § 87(2)(b) and placed his left hand on his right jacket collar, with his right hand on the zipper, and tried to unzip the jacket. Before he could unzip the jacket, § 87(2)(b) pulled back and asked what he was doing, and SGT Manou released his grip, stating, “Your jacket is really puffed up. What do you have in there?” He explained that he had surgery and that his arm was in a sling, unzipping the jacket to show him. Sgt. Manou apologized and returned to work. § 87(2)(b) requested his name and shield number, and he provided it, but he did not receive a business card from SGT Manou, nor did he ask for one [BR 3].

§ 87(2)(b) stated that after retrieving the prescription at CVS and as they approached the exit, SGT Manou approached § 87(2)(b) and stopped him, asking what he had in his jacket as he grabbed him by the collar. Aside from retrieving the prescription, they did no additional shopping in the store. § 87(2)(b) opened the jacket to show SGT Manou, and SGT Manou apologized afterwards. § 87(2)(b) asked for his shield number and name, and SGT Manou provided them, but SGT Manou did not offer a business card to either him or § 87(2)(b) [BR 4].

Target surveillance footage captures video of the encounter between SGT Manou and § 87(2)(b). At 0:00, the frame begins with § 87(2)(b) at the left of the frame wearing a beige hat and gray jacket proceeding to exit the store. His right arm flops slightly as he moves towards the exit, as his arm is concealed under the jacket in a sling. At 0:02, SGT Manou approaches § 87(2)(b) who has his back turned and is about to cross the exit of the store.

individualized, reasonable suspicion that the person has committed, is committing, or is about to a commit a crime and where the individual would not feel free to end the encounter, except in cases where a summons is issued or an arrest is made [BR 9].

According to the procedures and guidelines delineated for paid detail officers from the NYPD Personnel Bureau, all paid detail officers “are subject at all times to NYPD rules, regulations, and standards of conduct” [BR 13].

SGT Manou stated that he was not required to provide a business card to § 87(2)(b) because he was not asked to provide one. § 87(2)(g)

§ 87(2)(g) is recommended that **Allegation B** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party [BR 10].
- SGT Manou has been a member of service for 18 years and has been a subject in five CCRB complaints and 10 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of March 12, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident [BR 11].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 3

Investigator:	<u>Thomas Skinnider</u>	<u>Inv. Thomas Skinnider</u>	<u>May 13, 2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Rolando Vasquez</u>	<u>IM Rolando Vasquez</u>	<u>5/21/2024</u>
	Signature	Print Title & Name	Date